

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CODY DELGADO,

Plaintiff,

-against-

Index No.:

Date Filed:

Plaintiff designates KINGS
County as the place of trial
The basis of venue is place
of occurrence

SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICERS JOHN DOE,
OFFICERS JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in
their official capacity and individually,

Incident occurred:
County of Kings, City and
and State of New York

Defendants.
-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer, or, if the complaint is not served with this summons, to serve a
notice of appearance, on the Plaintiffs' Attorney within twenty (20) days after service of this
summons, exclusive of the day of service (or within 30 days after the service is complete if this
summons is not personally delivered to you within the State of New York) ; and in the case of
your failure to appear or answer, judgment will be taken against you by default for the relief
demanded in the complaint.

Dated: Brooklyn, New York
May 9, 2014

By: 

Vel Belushin, Esq.,
LAW OFFICES OF VEL BELUSHIN, P.C.
Attorneys for Plaintiff
CODY DELGADO
1712 Kings Highway, 2nd Floor
Brooklyn, NY 11229
Tel: (718) 787-4470

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CODY DELGADO,

Index No.:
Date Filed:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICERS JOHN DOE,
OFFICERS JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in
their official capacity and individually,

Defendants.

-----X

Plaintiff, **CODY DELGADO**, by his attorneys, **LAW OFFICES OF VEL
BELUSHIN, P.C.**, complaining of the Defendants, **THE CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT, OFFICERS JOHN DOE and OFFICERS JANE
DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO
THE PLAINTIFF, IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY**, respectfully
alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times herein mentioned, Plaintiff, **CODY DELGADO**, was, and still is, a
resident of the County of Kings, City and State of New York.
2. At all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, was,
and still is, a municipal corporation.

3. At all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was and still is an entity operated by Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees.

4. That on May 15, 2013, and within the time prescribed by law, a sworn Notice of Claim stating, among other things the time when and the place where injuries and damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on plaintiff's behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

5. The Notice of Claim set forth the name and post office address of claimant and the claimant's attorneys, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damage and injuries sustained.

6. That pursuant to Stipulation the Plaintiff, **CODY DELGADO**, and the Defendant, **THE CITY OF NEW YORK**, dated November 8, 2013, the examination pursuant to General Municipal Law Section 50-h scheduled on September 9, 2013, was hereby adjourned at the Plaintiff's, **CODY DELGADO**, request and in particular the Plaintiff, **CODY DELGADO**, alleged that he was unable to attend the hearing due to incarceration. It was hereby stipulated and agreed by the Plaintiff's, **CODY DELGADO**, attorney that Plaintiff, **CODY DELGADO**, shall be responsible for notifying the Defendant, **THE CITY OF NEW YORK**, by certified and registered mail, return receipt requested within thirty (30) days after the Plaintiff, **CODY DELGADO**, shall become available to appear and give testimony as said hearing. That on

February 28, 2014, Plaintiff's, **CODY DELGADO**, attorney notified the Defendant, **THE CITY OF NEW YORK**, that the Plaintiff, **CODY DELGADO**, has been released from incarceration and became available to appear and give testimony at a 50-h hearing. More than sixty (60) days have elapsed since the service of said letter by certified and registered mail, return receipt requested and the Defendant, **THE CITY OF NEW YORK**, has not requested a hearing pursuant to Section 50-h of the General Municipal Law.

7. This action has been commenced within one year and ninety days after the cause of action occurred.

8. That at all times hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, maintained **THE NEW YORK CITY POLICE DEPARTMENT**, as units and agencies of the city government, having the duty to protect life and property, prevent crime, preserve the public peace and enforce all the laws, ordinances and provisions of the City and State of New York.

9. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments failed to adequately and properly test and/ or screen police officers and of **THE NEW YORK CITY POLICE DEPARTMENT**.

10. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly hired applicants for the position of police officer of **THE NEW YORK CITY POLICE DEPARTMENT**.

11. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly trained applicants for the position of police officer of **THE NEW YORK CITY POLICE DEPARTMENT**.

12. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly supervised the activities of their police officers of **THE NEW YORK CITY POLICE DEPARTMENT**.

13. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly controlled the activities of their police officers of **THE NEW YORK CITY POLICE DEPARTMENT**.

14. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly managed the activities of their police officers of **THE NEW YORK CITY POLICE DEPARTMENT**.

15. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly maintained the activities of their police officers of **THE NEW YORK CITY POLICE DEPARTMENT**.

16. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly inspected the activities of their police officers of **THE NEW YORK CITY POLICE DEPARTMENT**.

17. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers of **THE NEW YORK CITY POLICE DEPARTMENT** to act in an illegal manner.

18. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers of **THE NEW YORK CITY POLICE DEPARTMENT** to act in an unprofessional manner.

19. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers of

THE NEW YORK CITY POLICE DEPARTMENT to act in a negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

20. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments failed to take proper action in suspending and/or reprimanding their police officers of **THE NEW YORK CITY POLICE DEPARTMENT**.

21. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly continued to retain in their employment police officers of **THE NEW YORK CITY POLICE DEPARTMENT** clearly unfit to be police officers of **THE NEW YORK CITY POLICE DEPARTMENT**.

22. That all times hereinafter mentioned, Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, were an agent, servant and/or employee of Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, an agency of Defendant, **THE CITY OF NEW YORK**.

23. That at all times hereinafter mentioned, Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF in his official capacity and individually, were acting within the scope of their employment, by Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, an agency of Defendant, **THE CITY OF NEW YORK**, and were acting under the color of State Law.

24. That at all times hereinafter mentioned, Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS

CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, were acting within the scope of their employment with the permission and consent of Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, through its agency with defendant, **THE CITY OF NEW YORK**.

25. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments failed to properly and adequately conduct investigations, obtain true facts and statements from witnesses and law enforcement officers.

26. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, was careless, reckless and negligent in failing to discover the true facts which led to the assault, battery and arrest of the Plaintiff, **CODY DELGADO**.

27. The Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, was further careless, reckless and negligent in the supervision of the activities of its agency, the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**.

28. The Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, by its agents, servants, employees, agencies and/or departments failed to take all necessary steps to prevent the false arrest, false imprisonment, excessive force, harassment, malicious prosecution denial of right to a fair trial and, personal injuries; Violation of Civil Rights pursuant to 42 U.S.C. Section 1981, 1982, 1983, 1985 and 1986 and more particularly protected under the 4th, 5th, 8th and 14th Amendments of the United States Constitution and parallel provisions of the New York State Constitution of Plaintiff, **CODY DELGADO**.

29. On February 22, 2013, at approximately 5:00 a.m. while Plaintiff, **CODY DELGADO**, was asleep inside his apartment located at 1230 Avenue Y, Apt. 12F in the City and State of New York, County of Kings, Plaintiff's, **CODY DELGADO**, door was broken down violently by the Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, in tactical gear. Then the Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, entered Plaintiff's, **CODY DELGADO**, apartment. Plaintiff, **CODY DELGADO**, was thrown off his bed and held down by the Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, while Plaintiff, **CODY DELGADO**, was viciously attacked by the Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**. While being held down on the floor in his apartment, Plaintiff, **CODY DELGADO**, was repeatedly struck in the face, head, chest, arms and stomach. After being handcuffed, Plaintiff's, **CODY DELGADO**, girlfriend who was also inside the apartment was forced to leave the bathroom naked and then immediately handcuffed and thrown onto the floor without given an opportunity to put on clothes. At that point the Defendants, **OFFICERS JOHN DOE** and

OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, began to conduct a search of the Plaintiff's, **CODY DELGADO**, apartment. At no point before, during or after the arrest was the Plaintiff, **CODY DELGADO**, given a copy of a valid search and/or arrest warrant to view or advised that a valid search and/or warrant existed to permit the police to enter the Plaintiff's, **CODY DELGADO**, home and conduct a search and arrest. After being arrested the Plaintiff, **CODY DELGADO**, was transported to the 61st Precinct and then to Kings County Criminal Court. Plaintiff, **CODY DELGADO**, spent approximately twenty hours in custody. Upon information and belief Kings County District Attorney's Office declined to prosecute the Plaintiff, **CODY DELGADO**, and the Plaintiff, **CODY DELGADO**, was released from custody without being arraigned.

30. At the aforesaid date time and place, the Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, performed a false arrest, false imprisonment, excessive force, harassment, malicious prosecution denial of right to a fair trial of the Plaintiff, **CODY DELGADO**, causing said Plaintiff to sustain serious injury, great pain and mental distress. That as a result of the Defendants, **OFFICERS JOHN DOE AND OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, conduct the Plaintiff, **CODY DELGADO**, did suffer grievous

bodily injuries, about the head, body and limbs, some of which are of a permanent nature. Plaintiff, **CODY DELGADO**, became, and remains sick, sore, lame and disabled and did suffer and continues to suffer great physical and mental pain, and psychological injury and damage, for which he was confined to the hospital, bed and house, became disabled, which is of a permanent nature. Plaintiff, **CODY DELGADO**, has suffered and will continue to suffer a loss of enjoyment of life and emotional injuries which are permanent in nature. Plaintiff, **CODY DELGADO**, sustained, serious injury, great fear, emotional harm, disgrace, anxiety, stress, embarrassment and loss of self-esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon him by Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**.

Plaintiff, **CODY DELGADO**, has suffered and will continue to suffer a loss of enjoyment of life and emotional injuries which are permanent in nature.

31. That the Defendants', **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, employed by the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, conduct was a substantial factor in causing the incident and the Plaintiff's, **CODY DELGADO**, damages.

32. The aforesaid occurrence and resulting damages to the plaintiff, **CODY DELGADO**, were due to misconduct of the defendants herein.

33. Said occurrence and resulting injuries of Plaintiff, **CODY DELGADO**, were due without fault or wrongdoing on the part of the Plaintiff, **CODY DELGADO**, contributing thereto.

34. By reason of the foregoing, the Plaintiff, **CODY DELGADO**, has been damaged in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SECOND CAUSE OF ACTION

35. Plaintiff, **CODY DELGADO**, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

36. That on or about February 22, 2013 the Plaintiff, **CODY DELGADO**, was without just cause or provocation maliciously, recklessly and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious injury and harm to Plaintiff, **CODY DELGADO**, due to conduct of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

37. That said conduct constituted negligence of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT**, **THE NEW YORK CITY POLICE DEPARTMENT**, and **OFFICERS JOHN DOE** and **OFFICERS JANE**

DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

38. That as a result of the aforesaid occurrence, Plaintiff, **CODY DELGADO**, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A THIRD CAUSE OF ACTION

39. Plaintiff, **CODY DELGADO**, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

40. That on or about February 22, 2013, the Plaintiff, **CODY DELGADO**, was falsely arrested, falsely imprisoned, became a victim of harassment, malicious prosecution, denial of right to a fair trial due to the negligence of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

41. That said conduct constituted negligence of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT**, **THE NEW YORK CITY POLICE DEPARTMENT**, and **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

42. That as a result of the aforesaid occurrence, Plaintiff, **CODY DELGADO**, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A FOURTH CAUSE OF ACTION

43. Plaintiff, **CODY DELGADO**, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

44. That on or about February 22, 2013, the Plaintiff, **CODY DELGADO**, was falsely arrested, falsely imprisoned, became a victim of excessive force, harassment, malicious prosecution, denial of right to a fair trial due to the reckless conduct of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICER JOHN DOE** and **OFFICER JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

45. That said conduct constituted reckless conduct of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICER JOHN DOE** and **OFFICER JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

46. That as a result of the aforesaid occurrence, Plaintiff, **CODY DELGADO**, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A FIFTH CAUSE OF ACTION

47. Plaintiff, **CODY DELGADO**, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

48. That on or about February 22, 2013, the Plaintiff, **CODY DELGADO**, was falsely arrested, falsely imprisoned, became a victim of harassment, malicious prosecution, denial of right to a fair trial due to the willful, wanton, reckless and/or malicious conduct of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

49. That said conduct constituted willful, wanton, reckless and/or malicious conduct of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

50. That as a result of the aforesaid occurrence, Plaintiff, **CODY DELGADO**, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SIXTH CAUSE OF ACTION

51. Plaintiff, **CODY DELGADO**, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

52. That on or about February 22, 2013, the Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, intentionally, recklessly carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society, thereby inflicting serious bodily injury, mental and emotional distress upon Plaintiff, **CODY DELGADO**.

53. That as a result of the aforesaid occurrence, Plaintiff, **CODY DELGADO**, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SEVENTH CAUSE OF ACTION

54. Plaintiff, **CODY DELGADO**, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

55. That on or about February 22, 2013, the Plaintiff, **CODY DELGADO**, was falsely arrested, falsely imprisoned, became a victim of excessive force, harassment, malicious prosecution, denial of right to a fair trial due to the negligent, careless and improper training, supervision and control of the police officers by the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and Defendants, **OFFICERS JOHN DOE**

and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

56. That said conduct constituted negligent, careless and improper training, supervision and control of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendant, **THE NEW YORK CITY POLICE DEPARTMENT** and Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

57. That the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, due to the negligent, careless and improper training, supervision and control of police officers induced criminality.

58. That the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendant, **THE NEW YORK CITY POLICE DEPARTMENT** and Defendants, **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, conduct was egregious as a matter of law.

59. That as a result of the aforesaid occurrence, Plaintiff, **CODY DELGADO**, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A EIGHTH CAUSE OF ACTION

60. Plaintiff, **CODY DELGADO**, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

61. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived Plaintiff, **CODY DELGADO**, of the rights, privileges and immunities protected under the 14th Amendment of the United States Constitution and parallel provisions of the New York State Constitution.

62. As a result of the aforescribed actions the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **OFFICER JOHN DOE** and **OFFICER JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived the Plaintiff, **CODY DELGADO**, of the right to be free from unreasonable search and seizures protected under the 4th Amendment of the United States Constitution and parallel provisions of the New York State Constitution.

63. As a result of the aforescribed actions the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants,

THE NEW YORK CITY POLICE DEPARTMENT, OFFICERS JOHN DOE and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived Plaintiff, **CODY DELGADO**, of his right to liberty without due process of law protected under the 5th and 14th Amendments of the United States Constitution and parallel provisions of the New York State Constitution.

64. As a result of the aforescribed actions the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT, OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived Plaintiff, **CODY DELGADO**, of his right to be free from cruel un unusual punishment protected under the 8th Amendments of the United States Constitution and parallel provisions of the New York State Constitution.

65. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C., sections 1981, 1983, 1985 and 1986.

66. The aforescribed acts of the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT, OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, was intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

67. That as a result of the aforesaid occurrence, Plaintiff, **CODY DELGADO**, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A NINTH CAUSE OF ACTION

68. Plaintiff, **CODY DELGADO**, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

69. As a result of the aforescribed acts the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT, OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived Plaintiff, **CODY DELGADO**, of his right to be free from cruel and inhuman punishment and to be free from such conduct that is repugnant and shocking to the conscience; the actions of the individual defendants which included verbal abuse and harassment while Plaintiff, **CODY DELGADO**, was in custodial situation to endure emotional pain that had no legitimate purpose other than to punish him and to cause him emotional pain and to suffer.

70. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C., sections 1981, 1983, 1985 and 1986.

71. The aforescribed acts of the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT, OFFICERS JOHN DOE** and **OFFICERS JANE DOE**, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO

THE PLAINTIFF, in their official capacity and individually, were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's, **CODY DELGADO**, rights.

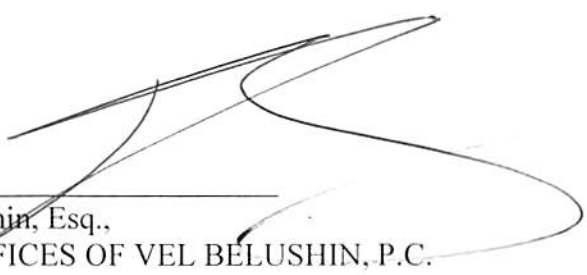
72. That as a result of the aforesaid occurrence, Plaintiff, **CODY DELGADO**, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

WHEREFORE, Plaintiff, **CODY DELGADO**, seeks damages herein on all causes of action, in sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with costs and disbursements of this action

Dated: Brooklyn, NY
May 9, 2014

Yours, etc.

By: _____


Vel Belushin, Esq.,
LAW OFFICES OF VEL BELUSHIN, P.C.
Attorneys for Plaintiff
CODY DELGADO
1712 Kings Highway, 2nd Floor
Brooklyn, NY 11229
Tel: (718) 787-4470

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CODY DELGADO,

Index No.:
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Plaintiff,

-against-

**ATTORNEY'S
VERIFICATION**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICERS JOHN DOE,
OFFICERS JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in
their official capacity and individually,

Defendants.
-----X

VEL BELUSHIN, an attorney duly admitted to practice before the Courts of the
State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF VEL BELUSHIN, P.C., attorney of
record for the Plaintiff, **CODY DELGADO**, I have read the annexed **COMPLAINT** and
know the contents thereof, and the same are true to my knowledge, except those matters
therein which are stated to be alleged upon information and belief, and as to those matters
I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon
facts, records, and other pertinent information contained in my files.

This verification is made by me because the Plaintiff, **CODY DELGADO**, is not
presently in the county wherein I maintain my office.

DATED: Brooklyn, New York
May 9, 2014



VEL BELUSHIN, Esq.

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
CODY DELGADO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICERS JOHN DOE,
OFFICERS JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in
their official capacity and individually,
Defendants.

-----X

SUMMONS & VERIFIED COMPLAINT

LAW OFFICES OF VEL BELUSHIN, P.C.

Attorneys for Plaintiffs

CODY DELGADO

1712 Kings Highway, Suite 2A

Brooklyn, New York 11229

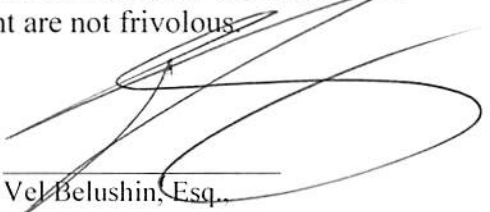
(718) 787-4470

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

Pursuant to 22NYCR 130-1.1 the undersigned, an attorney admitted to practice in the courts of New York State, certifies that upon information and belief and reasonable inquiry, the contents contained in the annexed document are not frivolous.


Vel Belushin, Esq.

Dated: May 9, 2014